

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christina Vuong	Team: Team # 3	CCRB Case #: 201201580	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/03/2012 1:35 PM	Location of Incident: In front of § 87(2)(b)	Precinct: 77	18 Mo. SOL 8/3/2013	EO SOL 8/3/2013	
Date/Time CV Reported Fri, 02/03/2012 3:31 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Fri, 02/03/2012 3:31 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jerry Garcia	02320	936643	077 PCT
2. POM Patrick Craig	26996	945623	077 PCT
3. POM Alex Viera	14168	945080	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ravi Narayan	03426	930799	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Jerry Garcia	Abuse: Sgt. Jerry Garcia supervised the stop of § 87(2)(b)	§ 87(2)(b)
B.POM Patrick Craig	Abuse: PO Patrick Craig frisked § 87(2)(b)	§ 87(2)(b)
C.POM Patrick Craig	Abuse: PO Patrick Craig searched § 87(2)(b)	§ 87(2)(b)
D.POM Alex Viera	Force: PO Alex Viera used physical force against § 87(2)(b)	§ 87(2)(b)
E.POM Alex Viera	Abuse: PO Alex Viera searched § 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 3, 2012, § 87(2)(b) filed the following complaint on behalf of himself and an acquaintance, identified by the investigation to be § 87(2)(b) via e-mail to the Civilian Complaint Review Board (CCRB) (encl. D1-2).

On February 3, 2012, Sgt. Jerry Garcia, PO Patrick Craig, and PO Alex Viera of the 77th Precinct approached § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) located at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A- Abuse of Authority: Sgt. Jerry Garcia supervised the stop of § 87(2)(b)

§ 87(2)(g)

Allegation B- Abuse of Authority: PO Patrick Craig frisked § 87(2)(b)

§ 87(2)(g)

Allegation C- Abuse of Authority: PO Patrick Craig searched § 87(2)(b)

§ 87(2)(g)

Allegation D- Force: PO Alex Viera used physical force against § 87(2)(b)

Allegation E- Abuse of Authority: PO Alex Viera searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

On February 6, 2012, § 87(2)(b) accepted mediation. However, on March 1, 2012, § 87(2)(b) contacted the CCRB and stated that he wanted to pursue an investigation into his complaint.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a 6'1" tall, 215-lb black male with black hair and brown eyes.

CCRB Statement

On February 6, 2012, § 87(2)(b) provided an initial phone statement to the CCRB (encl. D5-6). On March 8, 2012, § 87(2)(b) provided an in-person statement at the CCRB (encl. 7-13). § 87(2)(g)

On February 3, 2012 at 2:45 p.m., § 87(2)(b) went inside a store located at § 87(2)(b) in Brooklyn. § 87(2)(b) stated that the incident occurred at 2:45 p.m., but all police testimony and documentation suggested that the incident time was closer to 1:35 p.m.] Within a minute, § 87(2)(b) exited the store upon learning that an item was not in stock. Approximately 15 feet in front of the store, “§ 87(2)(b) § 87(2)(b) s sister’s neighbor’s son, an acquaintance identified by the investigation to be § 87(2)(b) § 87(2)(b) approached § 87(2)(b) and asked him how to replace a lost driver’s license. § 87(2)(b) made no physical contact with § 87(2)(b).

§ 87(2)(b) was wearing a black baseball hat, a solid black winter coat with two pockets (with front and side access), and blue jeans with two zipped pockets in the back and two pockets in the front. § 87(2)(b) had a brown bubble coat wrapped around his shoulders.

Two to five minutes after § 87(2)(b) and § 87(2)(b) started talking, three uniformed male officers, identified by the investigation to be Sgt. Jerry Garcia, PO Patrick Craig, and PO Alex Viera of the 77th Precinct pulled up next to them in a marked RMP and exited the vehicle. Sgt. Garcia had a radio in hand and said to § 87(2)(b) “We got a call for a suspect selling drugs.” § 87(2)(b) held up both of his hands in the air. § 87(2)(b) replied, “Please do not touch me. Let me hear it over the radio.” No officer had made physical contact with § 87(2)(b) s person at that point. When Sgt. Garcia played a callback for § 87(2)(b) § 87(2)(b) heard only a description of the subject as a male in his 20s wearing a black hat and black coat. § 87(2)(b) stated to Sgt. Garcia that he was § 87(2)(b) and not the suspect.

Before the end of the message was played, an officer had already made physical contact with § 87(2)(b) § 87(2)(b) described the officer that made physical contact with his person as a Hispanic male under 6’0” tall, identified by the investigation to be PO Viera, and the other officer as a 6’1” tall white male with orange-blond hair and a medium build between 27 and 30 years of age, who was identified by the investigation to be PO Craig. [The investigation determined that § 87(2)(b) mixed up his descriptions of the officers and that it was PO Craig that made contact with § 87(2)(b) s person.]

PO Craig patted § 87(2)(b) around his waistband and squeezed the outside of § 87(2)(b) s pants pockets before putting his hands inside § 87(2)(b) s front left pocket, and then his back right pocket. In § 87(2)(b) s front left pocket, he had \$80 in various denominations (not folded) inside. § 87(2)(b) said, “You’re not supposed to search me.” PO Craig replied, “I’m frisking you, calm down.” Sgt. Garcia told § 87(2)(b) to relax. § 87(2)(b) replied that the officers were not following protocol.

PO Craig removed § 87(2)(b) s “wallet”—a clear Ziploc bag with his driver’s license, credit card, bank card, title and registration, receipts—from § 87(2)(b) s zipped back right pocket. § 87(2)(b) states that the thickness of the bag was approximately ½ inch, and that he had no noticeable bulge from the items he had in his pockets. § 87(2)(b) had keys in the right side pocket of his jacket but they were not removed. PO Craig handed PO Viera § 87(2)(b) s license and bank card. Sgt. Garcia stood in front of § 87(2)(b) as PO Craig searched through § 87(2)(b) s pockets. No other officer made physical contact with § 87(2)(b) s person.

Within 45 seconds of being approached by Sgt. Garcia, a black Pontiac pulled up as PO Craig was searching § 87(2)(b) s pockets. A uniformed officer exited the car and said to § 87(2)(b) “You know what this is about.” § 87(2)(b) described this officer as a 6’2” to 6’3” tall, muscular brown-skinned Guyanese or West Indian male with a mustache and black hair whose last name began with the letter “N”, identified by the investigation to be PO Ravi Narayan of the 77th Precinct. [In his phone statement, § 87(2)(b) § 87(2)(b) stated that PO Narayan was dressed in plainclothes. Although § 87(2)(b) stated that PO Narayan interacted with § 87(2)(b) the investigation determined that it was PO Viera who approached § 87(2)(b).

§ 87(2)(b)] § 87(2)(b) heard § 87(2)(b) say to PO Viera, “I’m wearing brown. I do not have on black. Please do not touch me.” PO Viera pulled § 87(2)(b) 20 to 25 feet away towards § 87(2)(b) while § 87(2)(b) remained in front of § 87(2)(b) § 87(2)(b) could not hear or see PO Viera’s interaction with § 87(2)(b) § 87(2)(b) departed the location before § 87(2)(b)’s interaction with Sgt. Garcia, PO Craig, and PO Viera ended.

The encounter lasted 20 minutes. § 87(2)(b) left after he got his wallet and ID back. During the incident, § 87(2)(b) saw several other individuals walking past wearing black hats and black coats who were not stopped by the police.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a 5’8” tall, 170-lb black male with black hair and brown eyes.
- § 87(2)(b) is an acquaintance of § 87(2)(b)
- § 87(2)(b) was identified from the handwritten Stop, Question, and Frisk worksheet obtained by the investigation.

Phone Statement

On April 24, 2012, § 87(2)(b) provided a phone statement to the CCRB (encl. D14-15) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) described two vehicles pulling up to the location, one a marked RMP with two uniformed officers inside, and a black unmarked car with four uniformed officers inside. § 87(2)(b) stated that the description of the perpetrator provided by Sgt. Garcia, identified by the investigation, included the race of the male as black. When § 87(2)(b) asked Sgt. Garcia to play back the radio run, an officer, described by § 87(2)(b) as a 35-year-old, 5’7” tall, 165-lb white male with dirty blond hair and blue eyes who was identified by the investigation as PO Viera, grabbed § 87(2)(b) threw him against a car, and searched his pockets. § 87(2)(b) said that it was an illegal search and seizure. PO Viera responded that they got the call and they had to act on it. PO Viera took § 87(2)(b) ID and phone out of his pocket. PO Viera then gave back § 87(2)(b) ID and phone and told him to have a nice day. While PO Viera was interacting with § 87(2)(b) § 87(2)(b) could see five other unidentified officers surrounding § 87(2)(b) but could not see what the officers were doing.

At the conclusion of his phone statement, § 87(2)(b) agreed to appear at the CCRB on April 26, 2012 to provide a verified statement regarding the incident. On April 26, 2012, § 87(2)(b) missed his scheduled appointment without prior notification to cancel or reschedule, and a missed appointment letter was mailed in regards. On April 30, 2012 and May 8, 2012, two messages were left on § 87(2)(b) cell phone requesting a callback to reschedule his appointment. A check of the New York City Department of Correction database on September 27, 2012, showed that § 87(2)(b) was not incarcerated. Two please call letters had previously been mailed to § 87(2)(b) address on March 21, 2012 and March 28, 2012, of which his mother had confirmed receipt. As of the date of this report, no letter has been returned to the CCRB marked “return to sender” nor has § 87(2)(b) made any attempt to contact the CCRB to reschedule his appointment.

Witness: § 87(2)(b)

- § 87(2)(b) is a male of unknown age, height, weight, and race.
- § 87(2)(b)
- § 87(2)(b) declined to provide his first name to the CCRB but stated that his last name was § 87(2)(b). The investigation determined from the 911 call audio file that his last name is § 87(2)(b).

911 Call

On February 3, 2012 at 1:31 p.m., § 87(2)(b) called 911, identified himself as § 87(2)(b) and reported that a black male who was in his 20s and wearing a black hat and black jacket was selling drugs to people inside the store (encl. D16). His call was logged in SPRINT report #§ 87(2)(b).

Phone Statement

On September 13, 2012, § 87(2)(b) provided a brief phone statement (encl. D17). On February 3, 2012, § 87(2)(b) was § 87(2)(b) and had called 911 to make a report of drug sales inside the store. § 87(2)(b) did not recall any police response to his complaint and did not observe individuals outside the store interacting with any officers.

NYPD Statements:

Subject Officer: Sgt. JERRY GARCIA (77th Precinct)

- Sgt. Garcia is a § 87(2)(b)-old, 6'1" tall, 240-lb bald Hispanic male with brown eyes.
- On February 3, 2012, Sgt. Garcia was working with PO Craig and PO Viera as part of a Burglary Conditions team. Sgt. Garcia worked from 7:30 a.m. to 4:27 p.m. Sgt. Garcia was dressed in uniform and assigned to a marked RMP (vehicle number unknown).

Memobook Entry

Sgt. Garcia had three memobook entries relevant to this incident (encl. E1-2). At 1:25 p.m., Sgt. Garcia responded to a 10-10 radio run for a drug sale in front of § 87(2)(b). At 1:35 p.m., one male was stopped and at 1:45 p.m., a report was prepared in regards.

CCRB Statement

On May 22, 2012, Sgt. Garcia provided a statement to the CCRB (encl. E3-6).

On February 3, 2012 at approximately 1:25 p.m., Sgt. Garcia, PO Craig, and PO Viera received a radio run for a black male wearing a black hat and black jacket selling drugs in front of § 87(2)(b) in Brooklyn. PO Craig was the driver, Sgt. Garcia was the front passenger, and PO Viera was the back passenger.

Within a few minutes, Sgt. Garcia and his partners arrived at the location. When they exited the car with the intention to go into the deli to follow up on the complaint, Sgt. Garcia saw § 87(2)(b) standing a foot apart from § 87(2)(b) on the sidewalk behind a parked vehicle a few feet away from the storefront. There was no prior period of observation. Sgt. Garcia did not notice § 87(2)(b) while the officers were driving. He was unsure if § 87(2)(b) made physical contact with § 87(2)(b). § 87(2)(b) perfectly fit the description of the perpetrator in that he was a black male wearing a black hat and black jacket at the location of occurrence. Although Sgt. Garcia could not tell what § 87(2)(b) was doing, his entire body was visible at the time the officers approached. Sgt. Garcia recalled that § 87(2)(b) was wearing a brown jacket. Sgt. Garcia stated that there were no additional remarkable factors to § 87(2)(b) and § 87(2)(b) other than the fact they were huddled together and § 87(2)(b) fit the perpetrator description.

Sgt. Garcia, PO Craig, and PO Viera all said, “Hey, how’s it going guys?” Sgt. Garcia’s intention was to make sure that nothing suspicious was going on. He informed § 87(2)(b) that they had a radio run and wanted to make sure that everything was okay. § 87(2)(b) then got in a defensive stance, blading his body to the right. § 87(2)(b)’s hands were both visible, but the right side of his body was not in view. Sgt. Garcia did not observe anything on the right side of his body, but believed that he was covering something. § 87(2)(b) started to curse and scream unspecified statements.

As soon as § 87(2)(b) bladed his body, Sgt. Garcia stated that this action precluded any investigative questioning. § 87(2)(b)’s action prevented the officers from seeing the right side of § 87(2)(b)’s body, which Sgt. Garcia indicated compromised the officers’ safety and led to an escalation of the encounter. While § 87(2)(b) was blading his body, PO Craig said to § 87(2)(b) “Relax.” No directive was issued by an officer specifically addressing § 87(2)(b)’s blading of his body. PO Craig then quickly patted him down on an unspecified part of his body. Nothing was recovered as a result of PO Craig’s frisk. § 87(2)(b) cursed in response, saying, “What the fuck are you doing, you’re fucking harassing me, I’m going to fucking sue you.” § 87(2)(b) was not doing anything with his body; he was only verbally complaining. PO Viera was standing with § 87(2)(b). Sgt. Garcia confirmed that § 87(2)(b) was not a suspect. There was no prior discussion of which officer would engage with which individual. While the frisk was taking place, Sgt. Garcia was engaging with both males.

Sgt. Garcia then went over the radio and asked the dispatcher to repeat the perpetrator’s description in an attempt to calm down § 87(2)(b). § 87(2)(b) was calm for five seconds before resuming his complaining. Sgt. Garcia told § 87(2)(b) that they were doing their job and told § 87(2)(b) to give them a few seconds to investigate before § 87(2)(b) could leave. Sgt. Garcia stated that no investigative action was taken to determine whether § 87(2)(b) actually had drugs on his person. After the frisk, Sgt. Garcia attempted for the second time to interview § 87(2)(b). However, § 87(2)(b) kept cursing and threatening to sue. Sgt. Garcia did not see PO Viera interact with § 87(2)(b). He did not see any officer enter § 87(2)(b)’s pockets or make physical contact with § 87(2)(b)’s body prior to the frisk. When asked if § 87(2)(b) was free to leave at any point during the incident, Sgt. Garcia stated that § 87(2)(b) was free to leave at the end of the officers’ investigation.

During the incident, an unknown number of Street Narcotics Enforcement Unit (SNEU) officers, including an officer identified by the investigation to be PO Narayan, walked over to make sure that his team was okay. Sgt. Garcia did not call for assistance during the incident. He did not interact with the SNEU officers, nor did he see the SNEU team officers interact with § 87(2)(b) or § 87(2)(b).

Sgt. Garcia was presented with the two Stop, Question, and Frisk reports (UF-250) bearing his signature completed for § 87(2)(b) by PO Craig and PO Viera. Sgt. Garcia did not know how § 87(2)(b)’s pedigree information was obtained. Sgt. Garcia did not know why two UF-250s had been filled out for the same incident. He stated that the furtive movements referred to § 87(2)(b)’s blading behavior and that he was not calming down when asked. Sgt. Garcia could not speak to why the boxes for “false answers or evasive actions,” “changing direction at the sight of an officer,” and “engaging with known drug dealers were checked off.”

Subject Officer: PO PATRICK CRAIG (77th Precinct)

- PO Craig is a § 87(2)(b), 6'1" tall, 225-lb white male with brown hair and blue eyes.
- On February 3, 2012, PO Craig was working with PO Viera and Sgt. Garcia as part of a conditions team. He worked from 8:00 a.m. to 4:35 p.m. PO Craig was dressed in uniform and assigned to a marked RMP (vehicle number unknown).

Memobook Entry

PO Craig had no official memobook entry about the incident (encl. E7-10). PO Craig's fly sheet contained § 87(2)(b)'s name, address, and date of birth, as well as the incident location, § 87(2)(b) and § 87(2)(b).

Handwritten Stop, Question, and Frisk Report (UF-250)

PO Craig completed UF-250 § 87(2)(b) for the stop of § 87(2)(b) (encl. E11-12). PO Craig noted the period of observation as five minutes, the time of stop as 1:15 p.m., the duration of stop as five minutes, and that § 87(2)(b) was suspected of drug sales. In the "circumstances" section, PO Craig checked off "actions indicative of engaging in drug transaction." No weapon or contraband was found. PO Craig marked that a frisk was performed due to furtive movements and refusal to comply with officer directions. The search box was not checked off. In the "additional circumstances" section, PO Craig checked off several boxes: report from victim/witness, high-crime area, time of day/week/season, suspect is associating with known individuals, and proximity to the crime location.

CCRB Statement

On May 22, 2012, PO Craig provided a statement to the CCRB (encl. E13-16). § 87(2)(g)

In the RMP, PO Craig saw § 87(2)(b) and § 87(2)(b) standing on the sidewalk engaged in conversation half a block away. § 87(2)(b)'s back was to the RMP. PO Craig said aloud, "Oh, that might be him," referencing that § 87(2)(b) fit the perpetrator's description. PO Craig observed them for 15 to 30 seconds while continuing to drive down the block. At some point, § 87(2)(b) turned his head and appeared to notice the RMP. Immediately after turning his head, he stepped towards an SUV, appearing to PO Craig to "duck" behind it. § 87(2)(b) walked an unknown distance to the car; he did not run to the car. Other than the SUV, there was a line of cars down the block that obstructed PO Craig's view. PO Craig did not see anyone else on the street that fit the description of the perpetrator.

Upon exiting the RMP, PO Craig saw that § 87(2)(b) had a cup of coffee in one hand and his other hand not moving inside his pocket. PO Craig did not see anything remarkable about § 87(2)(b)'s clothing or about § 87(2)(b)'s pockets. PO Craig initiated the interaction and said, "I just saw you come out of the deli. Can you come over here and talk for a second?" PO Craig clarified to the CCRB that he did not actually see them exit the deli. § 87(2)(b) asked, "Why are you stopping me?" PO Craig replied that the deli owner reported that persons refused to leave. § 87(2)(b) responded, "I'm going to sue."

§ 87(2)(b) then began backing up a few steps. § 87(2)(b) made no other body movements before PO Craig said, "Come here. Let me do this real fast." PO Craig then patted down § 87(2)(b)'s pockets, including his upper jacket pockets. There was nothing unusual about those pockets, but he stated that his experience showed that weapons were hidden in upper jacket pockets. PO Craig was the only officer to make physical contact with § 87(2)(b). No physical contact was made with § 87(2)(b) prior to the frisk, or following the frisk. Nothing was recovered from the frisk. § 87(2)(b) had the cup of coffee in one hand for the duration of the incident. § 87(2)(b) was not free to leave until after he was frisked.

PO Craig did not recall how he obtained § 87(2)(b)'s pedigree information. To his knowledge, PO Viera did not interact with § 87(2)(b). Sgt. Garcia was standing next to the officers and § 87(2)(b) the entire time. Sgt. Garcia did not instruct PO Craig to frisk § 87(2)(b). PO Craig was unsure if additional units responded. Immediately after interacting with § 87(2)(b), PO Craig went to speak with the unidentified deli owner. The owner stated that three persons, one of whom was the perpetrator, had walked out while PO Craig was engaging with § 87(2)(b).

PO Craig was presented with the UF-250s that he and PO Viera filled out. With regards to the "circumstances" section, PO Craig stated that § 87(2)(b) ducking behind the car and talking to an individual were indicative of a drug transaction. He stated that individuals commonly sold drugs to each other on the corner and in the deli. PO Craig did not see any money or drugs exchanged between § 87(2)(b) and § 87(2)(b). PO Craig stated that he should have checked "furtive movements" instead of "actions indicative of a drug transaction." Concerning "refusal to comply with officer directives" as a reason for the frisk, PO Craig stated that § 87(2)(b) was backing up in response to PO Craig's directive to "come here." In the "additional circumstances" section, PO Craig stated that high crime area referred to the fact that the location was across the street from a NYCHA building and drug sales occurred all day. PO Craig stated that he had accidentally checked off the "interaction with a known individual" box. As for the UF-250 that PO Viera filled out, PO Craig stated that "hands on suspect" in the section "force used" referred to frisking § 87(2)(b). To his knowledge, PO Viera had no interaction with § 87(2)(b). PO Craig did not know why PO Viera checked off in the "additional circumstances" section "evasive/false responses."

Subject Officer: PO ALEX VIERA (77th Precinct)

- PO Viera is a § 87(2)(b)-old, 5'8" tall, 185-lb Hispanic male with black hair and brown eyes.
- On February 3, 2012, PO Viera had the same tour and assignment as PO Craig.

Memobook Entry

PO Viera had three memobook entries relevant to this incident (encl. E17-18). At 1:40 p.m., PO Viera responded to a 10-10 radio run for a drug sale in front of § 87(2)(b). At 1:42 p.m., two males were stopped, § 87(2)(b) and § 87(2)(b). At 1:48 p.m., reports referencing SPRINT Report #§ 87(2)(b) was prepared in regards.

Handwritten Stop, Question, and Frisk Report (UF-250)

PO Viera filled out UF-250 #§ 87(2)(b) and § 87(2)(b) for the officers' interaction with § 87(2)(b) and § 87(2)(b) (encl. E19-22). PO Viera marked 1:42 p.m. as the time of stop, two minutes as the observation period, and two minutes for the duration of the stop. § 87(2)(b) was stopped on suspicion of drug sales in connection with SPRINT Job #§ 87(2)(b). In the "circumstances" section, PO Viera checked off "fits the description" and "actions indicative of engaging in drug transaction." PO Viera noted that physical force was used (hands on suspect) for self defense. PO Viera checked that a frisk was performed for furtive movements and refusal to comply with officer directives. § 87(2)(b) was not searched and no weapon or contraband were found. In the "additional circumstances" section, PO Viera checked off "evasive, false, or inconsistent response to officer questions" and "changing direction at the sight of officers. PO Viera filled out the same fields in the same way for § 87(2)(b) including that he fit the description of the defendant.

CCRB Statement

On May 22, 2012, PO Viera provided a statement to the CCRB (encl. E23-26). § 87(2)(g)

From the RMP, PO Viera saw that both § 87(2)(b) and § 87(2)(b) were on the sidewalk standing behind a car, but did not observe what they were doing because the RMP was in motion. § 87(2)(b) and § 87(2)(b) position behind the parked car did not shift from the time of observation to the time of approach. At the time of approach, PO Viera saw that the two males were talking to each other without any physical interaction. All parties' hands were visible. PO Viera did not recall if either § 87(2)(b) or § 87(2)(b) were doing anything with their body. PO Viera stated that both males were stopped because they were together even though only § 87(2)(b) fit the description.

PO Craig stopped § 87(2)(b) while PO Viera engaged with § 87(2)(b). PO Viera did not interact with § 87(2)(b). He observed PO Craig frisk § 87(2)(b) and did not see § 87(2)(b) make any significant body movements during the frisk. He did not hear or see PO Craig's subsequent interaction with § 87(2)(b).

After a minute of conversation about the reason for the stop, § 87(2)(b) put his hands inside his pocket for a few seconds, after which PO Viera asked § 87(2)(b) to frisk him. § 87(2)(b) consented and PO Viera patted down § 87(2)(b) in the waistband area but did not go into any pockets. PO Viera frisked to see if § 87(2)(b) was concealing weapons. There was no other physical contact with § 87(2)(b) person. § 87(2)(b) produced his ID voluntarily after the frisk.

PO Viera was presented with the UF-250 that he and his partner completed. PO Viera stated that there was miscommunication between him and his partner about preparing the UF-250. PO Viera maintained that he did not observe the interaction between § 87(2)(b) and PO Craig. PO Craig may have communicated the content of his interaction to PO Viera after which PO Viera completed the UF-250. PO Viera knew that § 87(2)(b) would file a complaint and so he completed a UF-250 for § 87(2)(b). PO Viera was therefore unable to explain boxes checked off for § 87(2)(b).

Witness Officer: PO RAVI NARAYAN

- PO Narayan is a § 87(2)(b)-old, 5'10" tall, 220-lb Indian male with black hair and brown eyes.
- PO Narayan has a mustache.
- On February 3, 2012, PO Narayan worked from 6:00 a.m. to 2:35 p.m. He was partnered with PO Claribel Aquino and PO Hector Morales to a SNEU team. PO Narayan was dressed in uniform and assigned to RMP #3298.

Memobook Entry

PO Narayan had no memobook entries relevant to this incident (encl. E27-28). At 1:10 p.m., PO Narayan arrested two individuals at § 87(2)(b) and brought them back to the 77th Precinct stationhouse. At 1:20 p.m., PO Narayan resumed patrol.

CCRB Statement

On July 5, 2012, PO Narayan provided an in-person statement to the CCRB (encl. E29). PO Narayan did not recall the incident or § 87(2)(b) even after being presented with a map of the location, photos of the civilians, and a brief narrative of the incident.

NYPD Documents

SPRINT Report #§ 87(2)(b) and Radio Communications

On February 3, 2012 at 1:31 p.m., § 87(2)(b) called 911, identified himself as § 87(2)(b) and reported that a black male who was in his 20s and wearing a

black hat and black jacket was selling drugs to people inside the store. § 87(2)(b) provided his callback number to the dispatcher. The call lasted 90 seconds (encl. F1-2).

The radio communications audio file was obtained and revealed the following: § 87(2)(b)'s description of the male perpetrator was relayed in full to the conditions team (encl. F1-2). The audio file appeared to be an uninterrupted recording of all radio communications within the 77th Precinct, as it included transmissions regarding unrelated jobs and units. Approximately 30 seconds after a call for the drug sale at the location went out, the conditions team requested a repeat of the location. 90 seconds after that, the conditions team requested a repeat of the perpetrator description, to which the dispatcher responded, "male black wearing a black hat and black jacket in his 20s, nothing further, anonymous caller." It should be noted that there was very brief background noise but no discernible voice when the conditions team requested the playback. Two minutes later, the conditions team requested the SPRINT report number and noted that two males were stopped in regards. The audio file lasted seven minutes. The corresponding time-stamp for the final communication was 1:43 p.m.

Roll Call

The 77th Precinct February 3, 2012 Tour 2 Roll Call listed multiple officers assigned to SNEU during the time of the incident: PO Narayan, PO Morales, PO Aquino, PO William Camacho, PO Darryl Chen, PO Edwin Simon, and PO Edwin Ferreira (encl. F3-14). With the exception of PO Narayan and PO Chen, all of the other officers are Hispanic.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 21, 2012, which is more than three months after the 90-day filing period, with regard to the incident (encl. H1).

§ 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

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§ 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

§ 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

§ 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

Civilians CCRB History

- § 87(2)(b) has filed eight prior complaints with the CCRB (B4).
 - § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)
 - § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)
 - § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)
 - § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)
 - § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)
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 - § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

- § 87(2)(b) § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b) has filed one prior complaint with the CCRB (B5).
 - § 87(2)(b)

Subject Officers CCRB History

- Sgt. Garcia has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. B1).
- PO Craig has been a member of the service for 5 years and there are no substantiated CCRB allegations against him (encl. B2).
- PO Viera has been a member of the service for 5 years and there are no substantiated CCRB allegations against him (encl. B3).

Conclusion

Identification of Subject Officers

Sgt. Garcia and PO Craig acknowledged interacting with § 87(2)(b) and PO Viera acknowledged interacting with § 87(2)(b) § 87(2)(b) provided accurate physical descriptions of PO Craig and PO Viera but alleged that PO Viera frisked him and searched his pockets while PO Craig watched. § 87(2)(b) was unable to describe the officers that were engaging with § 87(2)(b) and he alleged that a 5'7" tall white officer with blonde hair and blue eyes pushed and searched him; however, § 87(2)(b) did not corroborate this description, instead pointing to PO Narayan, a 5'10" tall, 220-lb Indian male with black hair, as the officer who interacted with § 87(2)(b) § 87(2)(b) did not recall the incident.

Sgt. Garcia confirmed that unidentified members of a SNEU team came by but did not interact with either the officers or the civilians. PO Narayan also did not recall the incident, and there was no record of a SNEU team at the location. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Abuse of Authority: Sgt. Jerry Garcia supervised the stop of § 87(2)(b)

It is undisputed that Sgt. Garcia, PO Craig, and PO Viera responded to a radio run for a black male in his 20s wearing a black hat and black coat selling drugs at § 87(2)(b) It is also undisputed that § 87(2)(b) a § 87(2)(b) black male wearing a black hat and a dark coat, was standing in front of § 87(2)(b) It is undisputed that the officers intended to stop and did stop § 87(2)(b) Sgt. Garcia, PO Craig, and PO Viera collectively stated that they responded to the location within minutes of the radio run. Although it was not noted on the SPRINT report how long after the 911 call was the job relayed to the officers, the SPRINT report showed that 12 minutes elapsed from when the 911 call was placed to when the job was marked with its final disposition that [UF-250s] were prepared.

An officer must have reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor to stop that person. People v. De Bour, 40 N.Y.2d 210 (1976)

(encl. A1-11). An officer has reasonable suspicion to stop a defendant based upon the contents of a radio run providing a general description of the defendant, the close proximity of the defendant to the site of the crime, and the short passage of time between the commission of the crime and the observation of the defendant. People v. Bennett, 829 N.Y.S.2d 206 (2007-2d Dept) (encl. A12-13).

§ 87(2)(g)

§ 87(2)(g)

Allegation B- Abuse of Authority: PO Patrick Craig frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped because he fit the description of a male perpetrator selling drugs at the location. It is undisputed that PO Craig, of his own accord, frisked § 87(2)(b)'s pants pockets and jacket pockets. It is undisputed that the officers made no remarkable observations about § 87(2)(b)'s clothing or contents of his pockets.

PO Craig stated that he observed § 87(2)(b) walk behind a car, which he referred to as “ducking,” upon seeing the RMP drive towards the location and, upon approach, saw that § 87(2)(b) had a coffee cup in one hand and his other hand was in his pocket, not moving. PO Craig stated that following the officers’ approach, the only bodily movements § 87(2)(b) made were to take several steps backwards in response to PO Craig’s directive to “come here.” When asked about the two boxes he checked off on the “frisk” section of the UF-250 he prepared, PO Craig clarified that “furtive movements” referred to the aforementioned “ducking” motion, which had occurred prior to the approach, and “refusal to comply with officer directions” referred to § 87(2)(b)'s backing up. As for the extent of his frisk, PO Craig stated that there was nothing particular about § 87(2)(b)'s upper jacket pockets, but that his experience showed that weapons were hidden in those areas.

Sgt. Garcia and PO Viera did not corroborate PO Craig’s statement that § 87(2)(b) walked behind a parked car. Sgt. Garcia did not observe § 87(2)(b)'s behavior prior to the stop, he recalled that § 87(2)(b)'s body was entirely in view upon approach. Following the approach, Sgt. Garcia stated that § 87(2)(b) bladed his body to the right before PO Craig initiated a frisk, but that both of § 87(2)(b)'s hands were still visible while he was blading, and Sgt. Garcia did not make any observations about the frisk itself. PO Viera stated that § 87(2)(b)'s hands were visible during the stop. Other than confirming that PO Craig frisked § 87(2)(b) PO Viera stated that he made no observation of the events leading to the frisk or following it. No officer articulated a specific suspicion that § 87(2)(b) was armed.

An officer may perform a frisk only when he reasonably suspects that he is in danger of physical injury by virtue of the person being armed. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. A1-11). Reasonable suspicion of a drug offense does not provide justification for a frisk. People v. Gonzalez, 743 N.Y.S.2d 112 (2002-2d Dept) (encl. A14-15).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C- Abuse of Authority: PO Patrick Craig searched § 87(2)(b)

§ 87(2)(b) stated that during the frisk, PO Craig reached into two of his pockets and removed his makeshift wallet from his zippered back pocket. § 87(2)(b) and § 87(2)(b) did not observe § 87(2)(b)'s interaction with PO Craig. PO Craig denied placing his hands inside § 87(2)(b)'s pockets. PO Viera and Sgt. Garcia did not witness the allegation, while PO Narayan did not recall the incident. § 87(2)(g)

Allegation D- Force: PO Alex Viera used physical force against § 87(2)(b)

Allegation E- Abuse of Authority: PO Alex Viera searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date